

**IN THE PROCUREMENT REVIEW COMMITTEE BALOCHISTAN PUBLIC
PROCUREMENT REGULATORY AUTHORITY**

PRC Appeal No. 46/2025

M/s Noor Khan Construction Company (NKCC),
Off: Near Habib Bank University Branch,
Sariab Road, Quetta.

....Appellant

VERSUS

1. The Secretary,
CW, PP&H Department,
Government of Balochistan,
Secretariat, Zarghoon Road, Quetta.
2. Executive Engineer (Buildings)
CW, PP&H Department,
District Naseerabad, Dera Murad Jamali.
3. The Grievance Redressal Committee,
CW, PP&H Department,
Government of Balochistan,
Secretariat, Zarghoon Road, Quetta.

....Respondents

QUORUM

1. Habib Ur Rehman Jamot.....MD/Chairman PRC
2. Mubashir Ali Khan.....Procurement Specialist(G&S) /Member
3. Iftikhar Ahmed Sanjrani.....Director (Enforcement)/ Co-Opted Member
4. Engr. Iftikhar Ahmed Mir.....Technical Member PRC
5. Abdul Wahab Bulledi Advocate.....Private Member PRC

**APPEAL UNDER RULE 56 (A) OF BALOCHISTAN PUBLIC PROCUREMENT RULES
2014 AGAINST TSE-252610889893**

For the Appellant: Mr. Mehboob Alam, Advocate.
For the Respondents: Mr. Abdul Rehman, Executive Engineer.

Date of Final Hearing: 04-12-2025

Decided On: 09-12-2025

DECISION

The Appellant has filed the above titled appeal stating therein that the Respondent No.2 has issued NIT bearing PRQ No.1785/08-10-2025 under which the bids for construction of boundary wall for ***"New Proposed Building of Election Office Dera Murad Jamali District Naseer Abad"*** were called under TSE No.252610889893, As per contention of the Appellant the date for bid opening was fixed on 23.03.2025 at about 1300 hours which were to be opened in presence of contractors but in the instant case despite participating and submission of bid Contractor's name was excluded from the eligibility criteria. Consequently the Appellant has approached the Grievance Redressal Committee by filing of written complaint and also addressed an application to the Provincial Election Commissioner for redressal of his grievances. He is also complaining of being knocked out from eligibility criteria despite being present.

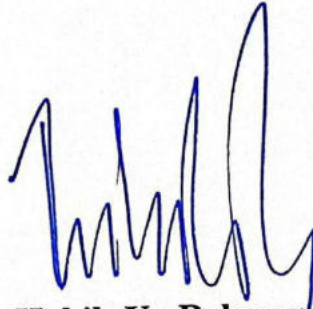
2. Notices were issued to the Respondents, who have filed their Parawise comments and contested the appeal on the ground that neither the Appellant submitted bid within time nor was present at the time of submission of their bid. The Representative further clarified that the Appellant has not submitted any complaint before the (CRC) for redressal of his grievance neither any intimation was made to the Procuring Agency regarding pendency of complaint. Representative of the Procuring Agency has further added that the bidding process was fair and transparent and according to BPPRA Rules and has requested for dismissal of Appeal.

3. We have heard the learned Counsel for the Appellant as well as gone through the record minutely. After perusal of record, it transpired that the complaint alleged to have been filed to the Election Commission as well as to the Procuring Agency on 06.11.2025 was without any postal receipt. The query was raised to the learned Counsel for the Appellant whether any complaint was filed before the appropriate forum (CRC) or otherwise, to which he replied that Imdad Shah, Head Clerk, at office of Executive Engineer Office, Naseerabad received the copy of complaint and also provided the same to the Committee which the Executive Engineer denied.

4. That the controversy between the parties regarding submission of bid or otherwise requires evidence which could only be determined by pro & contra evidence

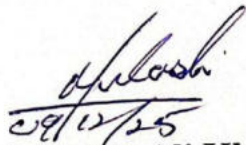
and this forum lacks jurisdiction to lead evidence. Furthermore, the Appellant has also failed to prove that the complaint was filed before the CRC as per Rule 56 of BPP Rules 2014.

5. In view of above, the Appeal in hand is dismissed and parties be informed accordingly.



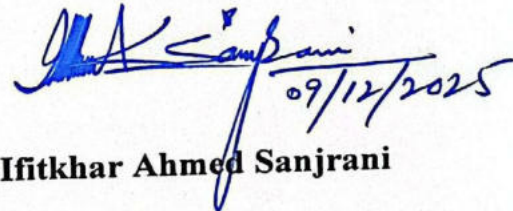
Habib-Ur-Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

9/12/2025



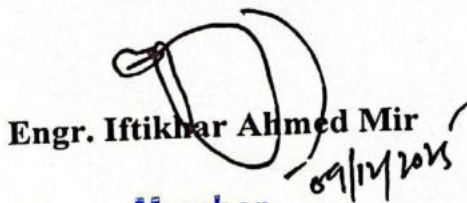
Mubashir Ali Khan

Member
Procurement Review Committee
BPPRA



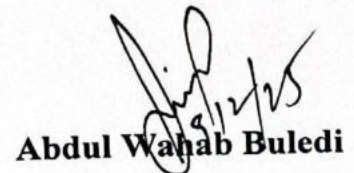
Ifitkhar Ahmed Sanjrani

Member
Procurement Review Committee
BPPRA



Engr. Ifitkhar Ahmed Mir

Member
Procurement Review Committee
BPPRA



Abdul Wahab Buledi

Member
Procurement Review Committee
BPPRA